

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Daniel B. Goldsten
Judge of the Superior Court
County of San Diego
220 West Broadway
San Diego, CA 92101

Re: Tuua, Suttonu
CDC No.: AH2175
Case No.: SCN257831
Date of Sentence: May 23, 2011

Dear Honorable Daniel B. Goldstein:

The purpose of this letter is to provide the court with authority to resentence Suttonu Tuua pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Tuua was sentenced in 2011, and was convicted of section 245, subdivision (a)(1), Assault With Deadly weapon Likely to Produce. The trial court sentenced inmate Tuua on May 23, 2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Tuua's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Tuua's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Peter C. Deddeh, San Diego County Presiding Judge
San Diego District Attorney
Public Defender

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM

(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: **SAN DIEGO**

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: **SUTTONU TUUA**
AKA: **SEE CRIMINAL HISTORY**
CII NO.: **27861134**
BOOKING NO.: **10720608**

DOB: **1-22-88**

CASE NUMBER
SCN156831

Correct Case #
SCN257831

COMMITMENT TO STATE PRISON
ABSTRACT OF JUDGMENT

DATE OF HEARING: **5-23-11** DEPT. NO.: **5** JUDGE: **DANIEL B. GOLDSTEIN**

CLERK: **S. CLARK** REPORTER: **N. BLACKWILL** PROBATION NO. OR PROBATION OFFICER: **10290850**

COUNSEL FOR PEOPLE: **B. ARSTILL** COUNSEL FOR DEFENDANT: **D. BURLAND**

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM (L, M, U)	TIME IMPOSED
1	PC	245(a)(1)	ASSAULT WITH DEADLY WEAPON LIKELY TO PRODUCE	2009	4-25-11	X	U	4 0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
1	PC186.22B1	3	PC12022.7(a)	3	PC12022.5(a)	10	16 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$ **4000** per PC 1202.4(b) forthwith per PC 2085.5; \$ **4000** per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☒ \$ _____ / ☒ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.
☒ Court Security Fee of \$ **40** per PC 1465.8. ☒ Criminal Conviction Assessment of \$ **30** per GC 70373.

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☒ other (specify): **PC296 DNA**

7. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin _____

8. Other orders (specify):

BOOKING FEE \$154

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM: **20** **0**

10. ☒ This sentence is to run concurrent with (specify): **SCN287111**

11. Execution of sentence imposed: a. ☐ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☒ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS INCLUDING:	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	4019	TIME SERVED IN STATE INSTITUTION:	DMH	CDCR	CRC
5-23-11		648	584	84	☒ 2933.1				

13. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays. To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation. ☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE	DATE
C. KOGER	6-2-11

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.